

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WAYNE HAYWARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER PETER RAMOS, Shield No. 12134, SERGEANT KITWANE LEWIS, POLICE OFFICER RYON MALCOLM, Tax No. 925654, POLICE OFFICER MICHAEL LANDI, Shield No. 762, POLICE OFFICER MAXIMO PEREZCOYLOE, Shield No. 222; POLICE OFFICER KANESHA SMITH, Shield No. 12210, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 13, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER PETER RAMOS, Shield No. 12134,
SERGEANT KITWANE LEWIS,
POLICE OFFICER RYON MALCOLM, Tax No. 925654,
POLICE OFFICER MICHAEL LANDI, Shield No. 762,
POLICE OFFICER MAXIMO PEREZCOYLOE, Shield No. 222;
POLICE OFFICER KANESHA SMITH, Shield No. 12210

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WAYNE HAYWARD,

Plaintiff,

-against-

INDEX NO.:**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER PETER RAMOS, Shield No. 12134, SERGEANT KITWANE LEWIS, POLICE OFFICER RYON MALCOLM, Tax No. 925654, POLICE OFFICER MICHAEL LANDI, Shield No. 762, POLICE OFFICER MAXIMO PEREZCOYLOE, Shield No. 222; POLICE OFFICER KANESHA SMITH, Shield No. 12210, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff WAYNE HAYWARD, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on May 13, 2020 at approximately 7:00 am he was lawfully present inside of his friend's apartment located at 140 Washington Walk, Apt. 5B, Brooklyn, NY 11205, at which time defendants allegedly executed a search warrant at the apartment and forcefully entered the apartment, assaulted and battered claimant, threw him onto the ground, unlawfully handcuffed him and falsely arrested him, without probable cause or legal justification. Plaintiff was transported against his will to the 88th Precinct where he was unlawfully detained for many hours before he was transported to Kings County Central Booking whereat the unlawful detention continued. Plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit and that the officers lacked probable cause to commit, bail was set, and plaintiff was unable to post bail. Plaintiff remained in New York City Department of Correction custody at the Manhattan Detention Center for approximately 7 additional days, until May 21, 2020, at 2:27 am when he posted bail and was released from custody. Plaintiff was required to return to court on multiple occasions before all

charges were dismissed and sealed in their entirety on June 29, 2021, after the DA's Office affirmatively moved to dismiss and seal all charges brought against claimant. Upon information and belief, the DA's Office moved to dismiss the charges against claimant Wayne Hayward after it received the DNA results from the lab and verified that claimant Wayne Hayward's DNA was not present on any of the weapons or contraband seized from the apartment. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, subjected plaintiff to the use of excessive force, maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff WAYNE HAYWARD is a resident of the state of New York.

3. Defendant POLICE OFFICER PETER RAMOS, Shield No. 12134, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER PETER RAMOS, Shield No. 12134, was at all times relevant herein, assigned to the 88th Precinct.

5. Defendant POLICE OFFICER PETER RAMOS, Shield No. 12134, is being sued in his individual and official capacity.

6. Defendant SERGEANT KITWANE LEWIS is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT KITWANE LEWIS, was at all times relevant herein, assigned to the 88th Precinct.

8. Defendant SERGEANT KITWANE LEWIS is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER RYON MALCOLM, Tax No. 925654, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER RYON MALCOLM, Tax No. 925654, was at all times relevant herein, assigned to the 88th Precinct.

11. Defendant POLICE OFFICER RYON MALCOLM, Tax No. 925654, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER MICHAEL LANDI, Shield No. 762, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER MICHAEL LANDI, Shield No. 762, was at all times relevant herein, assigned to the 88th Precinct.

14. Defendant POLICE OFFICER MICHAEL LANDI, Shield No. 762, is being sued in his individual and official capacity.

15. POLICE OFFICER MAXIMO PEREZCOYLOE, Shield No. 222, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER MAXIMO PEREZCOYLOE, Shield No. 222, was at all times relevant herein, assigned to the 88th Precinct.

17. Defendant POLICE OFFICER MAXIMO PEREZCOYLOE, Shield No. 222, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER KANESHA SMITH, Shield No. 12210, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER KANESHA SMITH, Shield No. 12210, was at all times relevant herein, assigned to the 88th Precinct.

20. Defendant POLICE OFFICER KANESHA SMITH, Shield No. 12210, is being sued in his individual and official capacity.

21. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On May 13, 2020 at approximately 7:00 am he was lawfully present inside of his friend's apartment located at 140 Washington Walk, Apt. 5B, Brooklyn, NY 11205, at which time defendants allegedly executed a search warrant at the apartment and forcefully entered the apartment, assaulted and battered claimant, threw him onto the ground, unlawfully handcuffed him and falsely arrested him, without probable cause or legal justification.

28. By way of background, plaintiff made plans with Terrance Sistrunk to get breakfast together at a local diner on the morning of May 13, 2020.

29. Plaintiff agreed to meet Terrance Sistrunk at his apartment located at 140 Washington Walk, and then they were going to walk to the diner together to grab breakfast.

30. On May 13, 2020, at approximately 7:00 am, plaintiff arrived at Terrance Sistrunk's apartment.

31. Plaintiff sat on the couch in the living room of the apartment while Terrance Sistrunk was getting ready to go to breakfast with plaintiff.

32. Less than five minutes after plaintiff arrived at Terrance Sistrunk's apartment, the defendant police officers knocked down the front door of the apartment and entered the apartment in an extremely aggressive manner.

33. The defendants allege they were executing a search warrant at Della Jones' Apartment and Della Jones was the target of the search warrant.

34. Upon information and belief, Della Jones was Terrance Sistrunk's half-sister.

35. Della Jones was not present at the apartment when the defendant police officers executed the search warrant.

36. Upon entering the apartment, the officers immediately searched plaintiff's person and handcuffed plaintiff.

37. The officers did not recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control, pursuant to their search of his person.

38. Plaintiff told the officers that he did not live in the apartment, and he arrived at the apartment a few minutes earlier because he was going to get breakfast with Terrance Sistrunk that morning.

39. Plaintiff showed the officers his identification which showed that he did not live at that apartment.

40. The apartment consisted of two bedrooms, a living room, kitchen, and hallway leading to the bedrooms.

41. Defendants claim that they recovered a firearm from Terrance Sistrunk's pant pocket while he was in bedroom #1.

42. The defendant officers allege they also recovered a firearm from a black bag located on the floor of bedroom #2.

43. The defendant officers further allege that they recovered a black bag from the hallway floor containing a quantity of marijuana and 3 endocet pills.

44. The defendant officers also allege that they recovered a box from the hallway closet that contained two firearms and ammunition.

45. The defendant officers allege they recovered a weighing scale and Ziplock bags from the kitchen countertop.

46. The defendant officers allege they recovered 2 pieces of mail from the apartment, but the mail was not addressed to plaintiff.

47. The defendant officers do not allege to have recovered any illegal drugs, weapons, or contraband from plaintiff's person.

48. Additionally, the officers did not possess an objective factual basis to allege plaintiff had custody or control over any of the alleged weapons or contraband allegedly seized from the apartment.

49. The defendant officers knew plaintiff did not live in the apartment and had just arrived at the apartment to go to breakfast with Terrance Sistrunk.

50. Additionally, the weapons and drugs that were allegedly recovered from the apartment by the officers were concealed in boxed, bags and closets and were not simply laying out in the open in public view.

51. Thus, the officers lacked any factual basis to believe plaintiff had any knowledge that there were drugs and /or weapons in the apartment and they certainly lacked any basis to believe he had possession, custody, or control over the weapons and /or drugs allegedly recovered from the apartment.

52. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the police officers possess objective facts to establish probable cause to believe he violated the law or committed a crime.

53. Nevertheless, the officers falsely arrested plaintiff, without probable cause or legal justification.

54. The officers forcefully dragged plaintiff out of the apartment and into an elevator.

55. Upon entering the elevator, the officers assaulted and battered claimant and subjected him to the use of excessive force when they used their elbows to forcefully push claimant into the corner of the elevator.

56. The defendant officers struck claimant with their elbows in his back and in his ribs, causing plaintiff to suffer pain in his back and his ribs.

57. The officers transported plaintiff against his will to the 88th Precinct whereat plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

58. While plaintiff was at the 88th Precinct, the officers interrogated him about whether he knew about any of the drugs or weapons recovered from the apartment, and about why he was present at the apartment when the officers executed the search warrant.

59. Plaintiff was cooperative with the officers and answered their questions.

60. Plaintiff explained that he had absolutely no idea there were any drugs or weapons in the apartment and that he had just arrived at the apartment to meet up with his friend to go to breakfast.

61. Plaintiff provided the officers with a DNA sample at the precinct because he was certain that he had absolutely no connection to anything illegal in the apartment and his DNA would not be detected on anything recovered by the officers.

62. Even though the officers knew plaintiff had no involvement with any crime that occurred at 140 Washington Walk, they declined to release him from their custody and

continued to advocate for the DA's Office to initiate a criminal prosecution against him wherein he would be charged with possession of the illegal drugs and weapons that were recovered from the apartment.

63. Plaintiff was transported to Central Booking whereat the unlawful detention continued until May 14, 2020 at 8:14 pm, 37 ½ hours after plaintiff was initially arrested by the officers, at which time plaintiff was arraigned in Kings County Criminal Court and was charged with crimes he did not commit, including but not limited to several counts of Criminal Possession of a Weapon Criminal Possession of a Controlled Substance.

64. Due to the serious nature of the charges brought against plaintiff, at arraignment, the Court set bail at \$25,000 cash, \$15,000 bond.

65. Plaintiff was unable to post bail at arraignment and was remanded into New York City Department of Correction custody on May 14, 2020, at 8:14 pm.

66. Plaintiff remained in New York City Department of Correction custody at the Manhattan Detention Center for approximately 7 additional days, until May 21, 2020, at 2:27 am when he posted bail and was released from custody.

67. Plaintiff was ultimately released from custody after he was able to post bail.

68. Plaintiff hired a bail bondman and paid the bail bondsman \$3,500 to post bail for him.

69. Plaintiff suffered significant injuries while he was detained in New York City Department of Correction custody at the Manhattan Detention Center.

70. Plaintiff was attacked by other prisoners on two occasions while he was at the Manhattan Detention Center.

71. On May 15, 2020, claimant plaintiff was attacked by another inmate named Derrick Gibbs, who punched plaintiff with closed fists in the facial area.

72. Plaintiff suffered bruising to his face and nose.

73. Thereafter, on May 20, 2020, plaintiff was attacked again by another prisoner.

74. On this occasion, inmate Calvin Johnson attacked plaintiff and punched him repeatedly in the face with closed fists.

75. There were DOC personnel present for the attack, and they sprayed plaintiff and the inmate who was attacking him with a chemical agent which caused burning to plaintiff's eyes and skin, made it difficult for him to breath, and caused him to suffer from an asthma attack.

76. Plaintiff was required to return to court on multiple occasions before all charges were dismissed and sealed in their entirety on June 29, 2021, after the DA's Office affirmatively moved to dismiss and seal all charges brought against claimant.

77. Upon information and belief, the DA's Office moved to dismiss the charges against plaintiff after it received the DNA results from the lab and verified that claimant plaintiff's DNA was not present on any of the weapons or contraband seized from the apartment.

78. Plaintiff's girlfriend also broke up with him because of the arrest and prosecution, which was devastating for plaintiff.

79. Plaintiff's cell phone, Samsung Model: SM J327T1 was seized from him during the arrest and was not returned to him. As a result, Wayne Hayward was forced to purchase a new cell phone which cost him \$880.

80. At no time relevant herein did defendants recover any illegal drugs, weapons or contraband from the possession, custody, or control of plaintiff.

81. At no time relevant herein did the police officers possess objective facts that established reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any manner.

82. The defendants did not possess probable cause or any legal justification to arrest plaintiff or charge him with committing a crime.

83. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

84. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

85. Several of the defendant police officers involved in plaintiff's arrest have histories of being disciplined for misconduct including for fabricating allegations against members of the public.

86. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or

disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

87. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

88. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest and false imprisonment, and for subjecting plaintiff to the use of excessive force because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search, falsely arrest and subject members of the public to the use of excessive force, without probable cause.

89. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

90. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

91. The unlawful stop, question, frisk, search, false arrest and false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

92. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and excessive force used against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

93. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully stopped, questioned, frisked, searched, seized, maliciously prosecuted, falsely arrested, and falsely imprisoned plaintiff, without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

95. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

100. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The illegal search of plaintiff's person employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

102. Defendants lacked probable cause to search plaintiff.

103. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

106. Plaintiff repeats and realleges paragraphs 1 through 105 as if fully set forth herein.

107. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

108. Defendants commenced and continued criminal proceedings against plaintiff.

109. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

110. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

111. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

113. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 112 with the same force and effect as if fully set forth herein.

114. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

115. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

116. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

117. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights: Excessive Force

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. The use of excessive force by defendants by tackling plaintiff to the ground and assaulting and battering him throughout his body was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

121. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

122. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

124. Defendants failed to intervene to prevent the unlawful conduct described herein.

125. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

126. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution

127. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 126 with the same force and effect as if more fully set forth at length herein.

128. Plaintiff was unlawfully searched, subjected to the use of excessive force, and falsely arrested without probable cause and without an objective factual legal basis to seize, and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that it is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

129. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

130. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, and Fourteenth Amendment Rights of members of the public.

131. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

132. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

133. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

134. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

135. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

136. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

137. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, and Fourteenth Amendments to the United States Constitution.

138. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

139. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff WAYNE HAYWARD demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 13, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
May 13, 2023

David Hazan

DAVID M. HAZAN